

Justification & Approval For Other than Full and Open Competition

As a legislative branch agency, the Library is subject to the competition and advertising requirements of 41 U.S.C. § 6101. Like the Competition in Contracting Act and the FAR, 41 U.S.C. § 6101 does not require competition when a contracting officer certifies that only one source or brand-name item is available, when dictated by public exigency, or when otherwise authorized by law.

This document sets forth the justification and approval for award of a contract or order by means providing for other than full and open competition per 41 U.S.C. § 6101, LCR 2110, and, as applicable, FAR 6.302, FAR 13.106-1, FAR 8.405, and FAR 16.505. Contracting without competition shall not be justified on the basis of a lack of advance planning or concerns related to availability of funds.

This form shall be used to support instances where competition will be limited to a single source, a limited number of sources, including where a brand name product is required.

Part 1 – Identification

1. Contracting Agency and Activity: Library of Congress, LCSG, NLSBPD, BOD

2. Nature of Action Being Approved

- ☒ Contract (or modification)
- ☐ LoC or Leg Branch Order (or modification)
- ☐ GSA Schedule or GWAC:
- ☐ Other:

Requisition Number: 2026-NLS-0123

Contractor (or Brand Name): Braillo

Estimated Value (Base and all options): [REDACTED]

Period of Performance: 8/1/2026 – 10/31/2026

3. Description of Supplies or Services Required to Meet Library Needs

Describe the supplies or services that are required to meet the Library's minimum needs and the delivery schedule required to meet those needs. Do not focus on a description of the program.

The Library requires the following supplies or services: The National Library Service (NLS) requires the Braillo 600 SR2 to produce high-quality, consistent, and durable braille documents (minimum 0.5 mm dot height) efficiently using paper rolls. This high-volume, 600 characters-per-second (CPS) production embosser is designed to operate continuously to meet strict standards.

Part 2 – Program Office Justification & Approval

4. Authority for Contracting Without Competition

Over \$250,000

For this requirement over \$250,000, under FAR part 6, the basis for contracting without providing for full and open competition is:

- ☐ There is only one responsible source and no other supplies or services will satisfy Library requirements. 41 U.S.C. § 6101(b)(2)(C); FAR 6.302-1.
 - ☐ Library's minimum needs can only be satisfied by contractor's unique capabilities or products. FAR 6.302-1(b)(1).
 - ☐ Source controls copyrights, patents, raw materials, or secret processes cannot be acquired otherwise, or similar circumstances. FAR 6.302-1(b)(2).
 - ☐ Other exception identified in FAR 6.302-1:
- ☐ There is such unusual & compelling urgency that the Government would be seriously injured if competition is not limited. 41 U.S.C. § 6101(b)(2)(B); FAR 6.302-2. Option years are not permitted.
- ☐ Source is expressly authorized or required by statute (e.g., AbilityOne, UNICOR, GPO, GSA Public Buildings Service, Appropriations Act, etc.) per 41 U.S.C. § 6101(b)(1) and FAR 6.302-5:
- ☐ Other basis authorized in 41 U.S.C. § 6101(b) or FAR part 6.302:
- ☐ Library's needs can only be satisfied by a brand-name product or item which is essential to the Government's requirement. FAR 6.302-1(c).
 - ☐ The Product is listed on the Library's Technical Reference Model (TRM) as part of the "As-is" Lifecycle, Page #: (Attach applicable page from TRM)

Up to \$250,000

For this requirement up to \$250,000, using simplified acquisition procedures under FAR part 13, the basis for contracting without providing for full and open competition is:

- ☐ Only one responsible source is reasonably available to meet Library requirements. 41 U.S.C. § 6101(b); FAR 13.106-1.
 - ☐ Product or service is reasonably available from only one source.
 - ☐ Source controls copyrights, patents or other exclusive licensing arrangements.
 - ☐ Urgent circumstances; only one source can reasonably deliver by required date. Option years are not permitted.
 - ☐ Source is expressly authorized or required by statute:
- ☒ Library's needs can only be satisfied by a brand-name product
 - ☐ The Product is listed on the Library's Technical Reference Model as part of the "As-is" Lifecycle, Page #: (Attach applicable page from TRM)

GSA Schedule Order

For this GSA schedule order under FAR part 8, the basis for not competing among GSA schedule-holders and/or specifying a brand name product or item is:

- ☐ An urgent and compelling need exists, and following GSA procedures would result in unacceptable delays. FAR 8.405-6(a)(1)(i)(A).
- ☐ Only one GSA source is capable of fulfilling the requirement at the level of quality required because the supplies or services are unique or highly specialized. FAR 8.405-6(a)(1)(i)(B).
- ☐ In the interest of economy and efficiency, the new work is a logical follow-on to an original order that was placed competitively among GSA schedule-holders (i.e., the original order was not sole-source or limited-source.) FAR 8.405-6(a)(1)(i)(C).
- ☐ Library's needs can only be satisfied by a brand-name product
 - ☐ The Product is listed on the Library's Technical Reference Model as part of the "As-is" Lifecycle, Page #: (Attach

Order Under Multiple Award Indefinite-Delivery Contract or GWAC

For this order under FAR subpart 16.5, the basis for contracting without providing for full and open competition is:

- ☐ The need is so urgent fair opportunity would result in unacceptable delays. 41 U.S.C. § 6101(b)(2)(C) and FAR 16.505(b)(2)(i)(A).
- ☐ The Library's minimum needs can only be satisfied by contractor's unique capabilities or products. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(i)(B).
- ☐ A logical follow-on order in the interest of economy and efficiency. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(C).
- ☐ To satisfy a minimum guarantee. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(D).
- ☐ Authorized or required by statute. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(E).
- ☐ The Library's minimum needs can only be satisfied by a brand-name product or item which is essential to the Government's requirement. 41 U.S.C. § 6101(b)(2)(B) and FAR 16.505(a)(4)(i).
 - ☐ The Product is listed on the Library's Technical Reference Model as part of the "As-is" Lifecycle, Page #: (Attach applicable page from the TRM)

5. Rationale for Contracting Without Competition

We are authorized to limit competition on the basis of the citation in section 4 because:

The Braillo 600 SR2 is considered the only acceptable option for high-volume, professional braille production because it is the only manufacturer that builds "true production" braille embossers capable of meeting national braille authority dot height standards (0.5mm) consistently while running 24/7. It is engineered for industrial, around-the-clock operation, whereas competitors frequently use smaller, plastic, solenoid-based parts designed for lighter duty. The Braillo 600 SR2 embosses in a two-page-per-sheet format (front and back) and can hold up to 2,000 braille pages in the stacker. Unique to this embosser is its use of braille paper rolls, which reduces paper costs and minimizes NLS staff downtime associated with loading more paper. Each roll can run for nearly eight hours, and embossed documents are separated by a blank sheet, making them easy to retrieve, organize, and bind.

Braillo's comprehensive four-year warranty (if using Braillo paper) is the most comprehensive in the industry. The warranty is valid for four years, or up to 10,700 hours and 20.8 million embossed braille pages, whichever comes first. Competitor models often become obsolete or stop working entirely during the time the Braillo 600 SR2 is still under warranty coverage. Braillo's motor is much more powerful than the competition, and is designed for continuous, mass-production of braille. Braille produced by Braillo embossers is widely considered the easiest to read, with dots produced exactly where they should be. Competitors' braille dots are often slightly wavy, making reading more difficult. NLS has exacting quality standards for its patrons, and a Braillo embosser is the only brand name whose braille meets these high standards.

6. Actions to Overcome Barriers to Competition Before Subsequent Contract Is Required

State what actions, if any, the program office can take to overcome barriers to competition before a contracting for this requirement again, such as: using action to provide time to develop specifications for a competitive procurement by a certain date; licensing copyrights or patents so other contractors may use the works; or breaking the requirement into parts that may be purchased competitively. If this is a one-time requirement, explain that action to increase future competition is not needed. If the source is expressly required by statute, state "Source is statutory."

To increase competition, we will: The Library will consistently monitor the commercial marketplace to see if alternatives to the Braillo brand name embossers become available that meet the Library's strict standards for production quality and quantity.

7. Program Office Certification

I certify that the description of the Government's minimum needs, schedule requirements, and technical information that provide the basis for this justification are accurate and complete.

			
Name	Title	Signature	Date

Part 3 – Contracting Officer Determinations & Certification

8. Efforts to Solicit from As Many Potential Sources As Practicable

Unless a justification is based on FAR 06.302-2, Unusual and compelling urgency, contracting officers shall post justifications for other than full and open competition, including brand name justifications, to SAM.gov (or eBuy for Brand Name Justifications under FAR Part 8) prior to requesting a proposal or otherwise entering into negotiations.

- ☐ Advance notice will be published to SAM.gov for 15 days before a contract is awarded. FAR 5.203(a).
- ☒ Advance or concurrent notice will be published to SAM.gov for a reasonable time for commercial items FAR 5.203(a) and 12.204(b).
- ☐ Advance notice will not be published because the action meets the following FAR exception:
- ☐ Notice would compromise national security. FAR 5.202(a)(1).
 - ☐ Unusual and compelling urgency; notice period would seriously injure Government. FAR 5.202(a)(2).
 - ☐ Expressly authorized or required to be made through another Government agency. FAR 5.202(a)(4).
 - ☐ Order will be placed against an IDIQ contract awarded under FAR 16.5. FAR 5.202(a)(6).
 - ☐ Order will be placed against GSA schedule or other competitively-awarded contract. FAR 5.202(a)(11).
 - ☐ Other:
- ☐ Advance notice will not be published per 41 U.S.C. § 6101; see attached deviation from the FAR per LCR 2110 § 3.A.

We made the following efforts to interest potential sources in this award: Brand Name Justification attached to solicitation posted to SAM.gov.

9. Listing of Sources That Expressed Interest in Writing

The following sources expressed interest in this award: TBD.

10. Additional Information

The following additional information is relevant to this justification and approval: None.

11. Contracting Officer Determination that Price Is Fair and Reasonable

As explained in detail below, I have determined that the prices for this contracting action are fair and reasonable based on comparison of the prices to the following (see FAR 15.404-1(b)(2)):

- | | |
|---|---|
| ☐ Historical prices paid by the Government | ☒ Published competitive price lists |
| ☒ Library's Independent Government Estimate | ☐ Prices obtained through market research |
| ☐ Other: | ☒ Prices obtained through competitive proposals |

The following analysis (based on attached pricing information) supports my determination: Fair and reasonable pricing will be determined before a contract award is made.

12. Contracting Officer Determination of Responsibility

- ☒ Checked System for Award Management (or will check in the case of competitive proposals for a brand name product)

13. Contracting Officer Determination of Best Value

I have determined that this action represents the best value to the Government because: Best value will be determined before a contract award is made.

14. Contracting Officer Certification

I certify that, to the best of my knowledge and belief, this justification is accurate and complete.

Brian D. Curl

Name

Brian D. Curl

Signature

05/06/2026

Date